

COMMITTEE ON APPROPRIATIONS, TRANSPORTATION AND TECHNOLOGY  
SENATE AMENDMENTS TO H.B. 2955  
(Reference to House engrossed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Title 3, chapter 19, article 6, Arizona Revised  
3 Statutes, is amended by adding section 3-3499, to read:

4 3-3499. Emergency fuel formulation waivers

5 A. NOTWITHSTANDING THE STATE IMPLEMENTATION PLAN PRESCRIBED BY  
6 SECTION 49-404, FOR THE PERIOD BEGINNING MARCH 1 AND ENDING OCTOBER 31 OF  
7 EACH YEAR, IF THE UNITED STATES ENERGY INFORMATION ADMINISTRATION'S  
8 SHORT-TERM ENERGY OUTLOOK IDENTIFIES SUPPLY ISSUES FOR GASOLINE OR CRUDE  
9 OIL, THE DIRECTOR OF THE DEPARTMENT OF ENVIRONMENTAL QUALITY AND THE  
10 ASSOCIATE DIRECTOR OF THE WEIGHTS AND MEASURES SERVICES DIVISION SHALL  
11 COLLABORATE TO SUBMIT AN EMERGENCY FUEL FORMULATION WAIVER TO THE UNITED  
12 STATES ENVIRONMENTAL PROTECTION AGENCY.

13 B. THE EMERGENCY FUEL FORMULATION WAIVER REQUEST MUST:

14 1. BE EQUALLY APPLICABLE TO ALL REGISTERED SUPPLIERS OR OXYGENATE  
15 BLENDERS.

16 2. NOT SELECTIVELY APPLY TO ANY SPECIFIC REGISTERED SUPPLIER OR  
17 OXYGENATE BLENDER.

18 3. APPLY TO ALL AREAS OF THIS STATE.

19 4. BE RESUBMITTED AT THE END OF EACH WAIVER PERIOD IF THE  
20 CONDITIONS MERITING THE EMERGENCY FUEL FORMULATION WAIVER CONTINUE.

21 Sec. 2. Legislative findings

22 The legislature finds that:

23 1. Current extreme and unusual fuel supply disruptions and looming  
24 summer price hikes have created an undue and unsustainable financial  
25 burden on the average household in this state.

26 2. This state relies heavily on out-of-state refineries for its  
27 fuel.

28 3. The local fuel supply is continuing to decrease due to  
29 California refineries shutting down and, as summer months approach,  
30 Maricopa county must switch to a specialized fuel blend that is more  
31 expensive and more difficult to source.

32 4. Streamlining permitting access for pipelines or the development  
33 of refineries is in the best interest of this state.

34 5. To provide relief to the families of this state, this state must  
35 pursue an emergency fuel formulation waiver from the United States  
36 environmental protection agency.

37 6. Existing federal law allows the United States environmental  
38 protection agency to grant emergency fuel formulation waivers under  
39 extreme supply conditions, and responsible governance demands timely  
40 action.

Senate Amendments to H.B. 2955

1           7. Emergency fuel formulation waivers are necessary to ensure every  
2 person in this state can afford the drive to work, the grocery store and  
3 other necessities of daily life."  
4 Amend title to conform

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